

257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that Plaintiff’s failure to timely oppose this motion is deemed to be its consent to the granting of this motion for attorney’s fees and costs.

3. Defendant’s Fees and Costs are Reasonable

In reviewing the costs and fees incurred, the Court considered the *Lodestar* factors, the experience of counsel, the amount of time incurred in defending against this case, and in prosecuting the demurrer. In doing so, the Court finds that Counsel Shafizadeh’s hourly rate of \$500.00 per hour, given her experience of nearly 30 years, and the amount of time spent on behalf of her clients in defending against this unlawful detainer action, are appropriate. Accordingly, the Court finds that amount of fees requested, \$21,175, are reasonable. The costs in the amount of \$1,600 as set forth in the Memorandum of Costs are reasonable.

Ruling

Defendant Ellie Rouhani, Roozbeh Katouzi, and Super Tehran Market, LLC (“Defendants”) Motion for Award of Attorney’s Fees and Costs against Plaintiff Amana Enterprise, LLC (“Plaintiff”) is **granted**. Plaintiff Amana Enterprises LLC shall pay attorney’s fees in the amount of \$21,175 and costs in the amount of \$1,600 no later than thirty (30) days from the date of this hearing. The Court will execute the proposed form of order lodged by Defendants on October 24, 2025.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C25-00779
CASE NAME: PAWAN GARG VS. BMW OF NORTH AMERICA, LLC, A DELAWARE LIMITED LIABILITY COMPANY

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S DEPOSITION AND REQUEST FOR MONETARY SANCTIONS**

FILED BY: BMW OF NORTH AMERICA, LLC, A DELAWARE LIMITED LIABILITY COMPANY

TENTATIVE RULING:

Summary

Defendant BMW of North America, LLC (“Defendant” or “BMW”) filed a Motion to Compel Plaintiff Pawan Garg’s (“Plaintiff”) Deposition and for Sanctions in the amount of \$2,280 is **granted**.

Background

This is a Lemon Law case. On March 19, 2025, Plaintiff filed a Complaint alleging Breach of Express Warranty and Breach of Implied Warranty in violation of the Song-Beverly Act. Plaintiff alleged that on or about November 19, 2023, Plaintiff leased a 2024 BMW i5, which continues to exhibit defects in violation of the Song-Beverly Act.

On May 15, 2025, BMW served the Notice via electronic service confirming the date of July 10, 2025 for Plaintiff's Deposition. (Hurvitz Decl., ¶ 4.) On July 7, 2025, Plaintiff filed an objection to the taking of their deposition. (Id. at ¶ 5.)

On July 7, 2025, Plaintiff served objections to Defendant's unilateral Notice of Deposition, and the corresponding Requests for Production of Documents. Plaintiff's objections requested Defendant to meet and confer in order to schedule Plaintiff's deposition on a mutually agreeable date.

On July 8, 2025, BMW contacted Plaintiff seeking alternative dates for deposition, and subsequently contacted Plaintiff regarding the same on July 24, 2025, and August 6, 2025. Following the parties' subsequent communications, the parties agreed to schedule Plaintiff's deposition for February 3, 2026. Given Plaintiff's willingness to proceed on that agreed-upon date, Plaintiff's counsel's office contacted Defendant's counsel on January 28, 2026, to inquire whether Defendant would withdraw the pending motion. Defendant's counsel responded that Defendant would not withdraw the motion unless and until Plaintiff's deposition was completed.

On September 17, 2025, BMW filed a Motion to Compel Plaintiff's Deposition and for Sanctions in the amount of \$2,280. The Motion is made on the grounds that Plaintiff has failed to meet and confer and has not made himself available to provide her deposition testimony under oath.

On January 29, 2026, Plaintiff filed an Opposition setting forth the history of attempts to meet and confer with BMW's counsel to set-up a date for Plaintiff's deposition. On February 3, 2026, BMW submitted a reply brief contesting the representations about the dates on which the Parties attempted to schedule the deposition of Plaintiff. According to BMW, on January 29, 2026, at 3:01p.m. Plaintiff offered the date of March 19, 2026, for Plaintiff's Deposition with no context. On February 2, 2026, Plaintiff's Counsel confirmed the agreed deposition was no longer taking place. According to BMW's counsel, Plaintiff failed to serve objections to the agreed deposition date of February 3, 2026.

Analyses

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden,

expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a).

Moreover, the grounds set forth in Cal. Code of Civ. Proc. § 2025.450 states that ; When a motion to compel attendance at a deposition is granted, the court “**shall** impose a monetary sanction (Section 2025.450(g)(1). When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, “without substantial justification, an unmeritorious objection to discovery, “ to make “an evasive response to discovery” and to make or oppose “unsuccessfully without substantial justification a motion to compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally.

Here, the Court finds that substantial evidence supports findings that Plaintiff and his counsel failed to submit to an authorized method of discovery, failed to meet and confer in a reasonable good faith attempt to set a deposition date, and engaged in conduct that is a misuse of the discovery process. For several months, he ignored BMW’s attempts to reschedule Plaintiff’s deposition until being served with the motion to compel. Counsel’s refusal to participate in making his client available for a rescheduled deposition and for failing to object to a Notice of Deposition is a sufficient basis for sanctions. (*Ellis v. Toshiba America Information Systems, Inc.* (2013) 218 Cal.App.4th 853, 877-878 [sanctions warranted where moving party “repeatedly attempted” discussions and sanctioned party “did not reciprocate in a constructive fashion”])

From the record, the Court finds that the deposition of Plaintiff has not yet taken place in the seven (7) months since the deposition had been noticed. The meet and confer efforts fail to result in the Deposition of Plaintiff, denying BMW of its right to conduct any meaningful discovery by way of deposition. The Court finds, under these circumstances, that Plaintiff and his counsel engaged in misconduct and engaged in efforts to delay and hinder BMW from pursuing testimony likely to lead to the discovery of admissible evidence about his claims under the Song-Beverly Act. Such misconduct warrants sanctions under Cal. Code of Civ. Proc § 2023.010 (e),(f) and (i). Sanctions are also warranted under Cal. Code of Civ. Proc. § 2025.450(g)(1).

Ruling

1. Defendant BMW of North America, LLC (“Defendant” or “BMW”) filed a Motion to Compel Plaintiff Pawan Garg’s (“Plaintiff”) Deposition and for Sanctions in the amount of \$2,280 is **granted**.
2. Plaintiff shall make himself available for deposition no later than 30 days from the date of this order. The deposition of plaintiff shall take place starting no earlier than 9:00 a.m. in the morning and shall last at no more than six hours per day in duration, and shall continue from day-to-day, except for Court holidays and weekends, until completed. Failure to follow this order may result in the imposition of terminating sanctions and may result in contempt proceedings against Plaintiff’s counsel.
3. Sanctions are due and payable, joint and severally, by Plaintiff Pawan Garg and his counsel, Quill and Arrow, LLP, and shall be paid no later than ten (10) days from the date of this hearing.
4. Counsel for BMW shall prepare a proposed order conforming to this ruling and e-file with the

Court no later than five (5) days from the date of this hearing.

17. 9:01 AM CASE NUMBER: C23-02459

CASE NAME: KYLE GARDNER VS. MARIO MADRIGAL

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF KYLE R. GARDNER TO APPEAR AT PHYSICAL INDEPENDENT MEDICAL EXAMINATION WITH STEVEN MCINTIRE, MD
FILED BY: MADRIGAL, MARIO VALENCIA**

TENTATIVE RULING:

Summary

Defendant Mario Valencia Madrigal ("Defendant") Motion to Compel Plaintiff Kyle Gardner ("Plaintiff") to attend and appear at an Independent Medical Examination ("IME") with Steven McIntire, MD for a neurological examination is **granted** in part and **denied** in part as set forth herein.

Background

This case involves a motor vehicle accident that occurred on October 13, 2021 wherein a motorcycle operated by Plaintiff Kyle R. Gardner, and another vehicle driven by Defendant Mario O Valencia Madrigal collided. As a result of the incident, Plaintiff reported experiencing pain in his left shoulder, elbow, wrist, knee, hip, and ankle, as well as a laceration to his left shin. Plaintiff is also claiming he sustained a concussion, resulting in symptoms such as confusion, forgetfulness, dizziness, and headaches. Plaintiff asserts a claim for damages related to these neurological injuries.

On May 30, 2025, Defendant served Notice of an IME for Plaintiff with Steven McIntire, M.D., who is a neurologist. Plaintiff, through counsel, objected to the examination. Counsel met and conferred.

On October 22, 2025, Defendant Mario Valencia Madrigal ("Defendant") filed this Motion to Compel Plaintiff Kyle Gardner ("Plaintiff") to attend and appear at an Independent Medical Examination with Steven McIntire, MD for a neurological examination. The Motion is supported by a Notice, Memorandum of Points and Authorities, Declaration of Dr. McIntire and Counsel Callie Tyler.

Defendant seeks to compel a neurological examination of Plaintiff pursuant to Cal. Code of Civ. Proc. § 2032.310(a). Plaintiff, who was allegedly injured in a motor vehicle accident, claims that he sustained a concussion, resulting in symptoms such as "confusion, forgetfulness, dizziness and headaches." After meeting and conferring over objections, the following issues remain to be resolved: (1) Plaintiff's objection to Dr. McIntire asking and taking a detailed medical history of Plaintiff regarding Plaintiff's injuries; and (2) the request that both parties may audio record under the condition that Plaintiff be allowed to videotape the examination.

On January 29, 2026, Plaintiff filed an opposition to the Motion, self-styled, "Opposition to Defendant's Motion to Compel Impermissible Communication with Represented Party ." Plaintiff objects to conducting an "oral examination" or "oral history," asserting that such examination is not contemplated by the Discovery Act in an independent medical examination, which, in this case is a mental examination.

In reply filed on February 2, 2026, Defendant claims that an examination necessarily requires that a